

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, March 28, 2024. Contents noted.

Recommend approval of the negotiated plea agreement in DADS No. 2023-29226 against Police Officer Dominic Darrigo, Tax Registry No. 965019. The case was conferenced on March 21, 2024, before Assistant Deputy Commissioner of Trials Ann E. Stone, who approved the negotiated penalty of Charges and Specifications and the forfeiture of Eighteen (18) vacation days.

Andre D. Applewhite

Andre Applewhite, Chief Prosecutor
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-29226
BOOK & PAGE NO. Page 1 of 3
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, DARRIGO	FIRST DOMINIC	M.I. P	COMMAND 121 PRECINCT
SHIELD NO. 6831	TAX REGISTRY NO. 965019	SOCIAL SECURITY NO.		DATE APPOINTED 01/10/2018
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

SPECIFICATION		DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . POLICE OFFICER DOMINIC DARRIGO, on or about September 8, 2022, at approximately 1453, while assigned to 121 PCT and on duty, in the vicinity of Trantor Place in between Innis Street and Hooker Place, Richmond County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Officer DARRIGO threatened to shoot § 87(2)(b) without police necessity.		PLEADED GUILTY	VACATION DAYS 18.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . POLICE OFFICER DOMINIC DARRIGO, on or about September 8, 2022, at approximately 1453, while assigned to 121 PCT and on duty, in the vicinity of Trantor Place in between Innis Street and Hooker Place, Richmond County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Officer DARRIGO spoke discourteously to § 87(2)(b) when he stated in sum and substance, "Stop the car or I'll fucking shoot you...Stop the fucking car...get out the fucking car," without police necessity.		PLEADED GUILTY	
3 . POLICE OFFICER DOMINIC DARRIGO, on or about September 8, 2022, at approximately 1453, while assigned to 121 PCT and on duty, in the vicinity of Trantor Place in between Innis Street and Hooker Place, Richmond County,		PLEADED GUILTY	

DC Benhio
FIRST DEPUTY COMMISSIONER

5/23/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caber
POLICE COMMISSIONER

6/11/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-29226
BOOK & PAGE NO. Page 2 of 3
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, DARRIGO	FIRST DOMINIC	M.I. P	COMMAND 121 PRECINCT
SHIELD NO. 6831	TAX REGISTRY NO. 965019	SOCIAL SECURITY NO.	DATE APPOINTED 01/10/2018	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
abused his authority as a member of the New York City Police Department, in that Officer DARRIGO frisked § 87(2)(b) without sufficient legal authority.		
4 . POLICE OFFICER DOMINIC DARRIGO, on or about September 8, 2022, at approximately 1453, while assigned to 121 PCT and on duty, in the vicinity of Trantor Place in between Innis Street and Hooker Place, Richmond County, abused his authority as a member of the New York City Police Department, in that Officer DARRIGO searched § 87(2)(b) without sufficient legal authority.	PLEADED GUILTY	
5 . POLICE OFFICER DOMINIC DARRIGO, on or about September 8, 2022, at approximately 1453, while assigned to 121 PCT and on duty, in the vicinity of Trantor Place in between Innis Street and Hooker Place, Richmond County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Officer DARRIGO spoke discourteously to § 87(2)(b) when he stated in sum and substance, "So, spell it fucking right...There's no fucking prejudice...Enough of your	PLEADED GUILTY	

DC Bunkio
FIRST DEPUTY COMMISSIONER

5/23/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caber
POLICE COMMISSIONER

6/11/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-29226
BOOK & PAGE NO. Page 3 of 3
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, DARRIGO	FIRST DOMINIC	M.I. P	COMMAND 121 PRECINCT
SHIELD NO. 6831	TAX REGISTRY NO. 965019	SOCIAL SECURITY NO.	DATE APPOINTED 01/10/2018	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
fucking nonsense," without police necessity. 6. POLICE OFFICER DOMINIC DARRIGO, on or about September 8, 2022, at approximately 1453, while assigned to 121 PCT and on duty, in the vicinity of Trantor Place in between Innis Street and Hooker Place, Richmond County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Officer DARRIGO threatened to arrest § 87(2)(b) without sufficient legal authority.	PLEADED GUILTY	

DC [Signature]
FIRST DEPUTY COMMISSIONER

5/23/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

6/11/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, May 23, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-29226 against Sergeant Dominic Darrigo, Tax No. 965019 (CCRB Case No. 202205991), with the recommendation that Sergeant Darrigo forfeit eighteen (18) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/pk

DC Kinsella
Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED

JUN 11 2024
Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER